

SENATE No. 2654

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, October 17, 2025.

The committee on Environment and Natural Resources to whom was referred the petition (accompanied by bill, Senate, No. 548) of Joanne M. Comerford, Angelo J. Puppolo, Jr., Marcus S. Vaughn, James B. Eldridge and other members of the General Court for legislation to expand access to trails for people of all abilities, report the accompanying bill (Senate, No. 2654).

For the committee,
Rebecca L. Rausch

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An Act expanding access to trails for people of all abilities..

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21 of the General Laws is hereby amended by inserting after
2 section 2G the following section:-

3 Section 2H. (a) There shall be a trail access advisory council to serve as a public resource
4 for outdoor trail accessibility. The council shall consist of the secretary of the executive office of
5 energy and environmental affairs or a designee, who shall serve as chair; the commissioner of the
6 department; and not more than 11 additional members appointed by the chair, in consultation
7 with the commissioner, who represent related stakeholder groups or organizations or possess
8 experience or expertise relevant to the council's scope of work stated herein. In making
9 appointments, the chair shall undertake reasonable measures to ensure geographic, racial and
10 ethnic diversity. Not less than one-third of the council's membership shall be individuals who
11 self-identify as having a disability.

12 (b) Members of the council shall be appointed for terms of 3 years or until a successor is
13 appointed. Members shall be eligible for reappointment. In the event of a vacancy, the secretary

of the executive office of energy and environmental affairs shall, within 60 days of the occurrence of a vacancy, appoint a new member to fulfill the remainder of the unexpired term. The council may request administrative support from the department.

(c) Council members may be eligible for compensation at a rate fixed by the council, as approved by the chief financial officer of the executive office of energy and environmental affairs, to ensure appropriate funds are available to cover the costs. Council members shall be eligible for compensation only to the extent otherwise permitted by chapter and upon providing the necessary documentation required to process any such payment. Any request for compensation shall be made by the council member to the executive office of energy and environmental affairs within 30 days of being incurred. Requests made after this time may be ineligible for payment.

(d) The council shall: (i) serve as a resource for municipalities and members of the public on matters related to universally accessible trail design and construction; (ii) assess and evaluate the status of trail accessibility throughout the commonwealth, including any changes in trail accessibility; (iii) hold public hearings and informational events as requested or appropriate; (iv) make policy recommendations to the legislature on trail accessibility, if any; and (v) annually, not later than February 1, file a report of its activities during the preceding calendar year with the joint committee on environment and natural resources and the clerks of the senate and house of representatives; provided, that the report shall include an accounting of accessible trail status throughout the commonwealth; and provided further, that the commissioner shall publish the report on the department's website.

(e) There shall be established and set up on the books of the commonwealth a separate fund, to be administered by the secretary of the executive office of energy and environmental affairs, which shall be known as the Massachusetts Trail Access Fund. The fund shall consist of revenues from public and private sources including, but not limited to, appropriations, gifts, grants, donations, reimbursements from the federal government and grants-in-aid or other receipts to further the purposes of the fund in accordance with this section.

SECTION 2. Members of the trail access advisory council established in section 2H of chapter 21 of the General Laws, as inserted by this act, shall be appointed not later than 3 months after the effective date of this act.